Dcm Shriram Ltd vs Jaipur Vidyut Vitran Nigam Limited & Ors on 20 March, 2018

Order on IA No. 206 of 2015 in Appeal No. 129

IN THE APPELLATE TRIBUNAL FOR ELECTRICITY
AT NEW DELHI

(APPELLATE JURISDICTION)

ORDER ON IA NO. 206 OF 2015 IN
APPEAL NO. 129 OF 2015

Dated: 20th March, 2018

Present: HON'BLE MR. N.K. PATIL, JUDICIAL MEMBER
HON'BLE MR. S.D. DUBEY, TECHNICAL MEMBER

IN THE MATTER OF

DCM Shriram Ltd.
Shriram Nagar, Kota - 324 004
Rajasthan .... Appellant(s)

VERSUS

1. Jaipur Vidyut Vitran Nigam Limited
Vidyut Bhawan, Janpath,
Jaipur - 302 005
(Rajasthan)

2. Ajmer Vidyut Vitran Nigam Limited
Vidyut Bhawan, Panchsheel Nagar
Makarwali Road,
Ajmer -305004
(Rajasthan)

3. Jodhpur Vidyut Vitran Nigam Limited
New Power House, Industrial Estate,
Jodhpur-342 003
(Rajasthan)

4. Rajasthan Discoms Power Procurement Centre
Shed No 5/5, Vidyut Bhawan,
Vidyut Nagar, Jaipur - 302005
(Rajasthan)

5. Rajasthan Electricity Regulatory Commission
Vidyut Viniyamak Bhawan,
Near State Motor Garage,
Sahkar Marg, Jaipur-302 005
(Rajasthan) .... Respondents

Counsel for the Appellant (s) : Mr. M. G. Ramachandran
Ms. Ranjitha Ramachandran
Ms. Poorva Saigal
Ms. Anushree Bardhan
Mr. A. K. Dubey
Mr. Shubham Arya

Counsel for the Respondent(s) : Mr. Bipin Gupta for R-1 to R-4

Mr. Raj Kumar Mehta
Ms. Himanshi Andley
Mr. Rajat for R-5

The Appellant has sought the following reliefs in the instant IA, being IA No. 206 of 2015 in Appeal No. 129 of 2015:

a) Stay the operation of the Impugned order dated 10.04.2015 passed in Petition No. 476 OF 2014 pending the hearing and decision in the Appeal;

b) Direct the Respondent Nos. 1 to 4 not to take any coercive step against the Appellant or its sister concerns for recovery of the amount as per the Order dated 10.04.2015;

c) Pass such further Order or Orders as this Hon'ble Tribunal may deem just and proper in the circumstances of the case.

ORDER

In view of the Appeal No. 129 of 2015 on the file of the Appellant Tribunal for Electricity, New Delhi being disposed of vide Judgment dated 20.03.2018, the relief sought in the instant IA, being IA No. 206 of 2015 does not survive for consideration and, hence stands disposed of.

(S.D. Dubey)
Technical Member

(Justice N.K. Patil)
Judicial Member

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